

Note on *R. v. Arcand*

Note to SWhen reading the following excerpt, please focus on getting a sense of the general themes and trends described. There is no need to recall the specific details (e.g. dates, the names of reports, etc.). For our purposes, it is enough if you develop a more generalized or pixelated sense of the trends and timelines that are discussed in the decision.

The themes that are expressly or implicitly taken up below include: the role of discretion in criminal sentencing; the related tension between achieving consistency and enabling flexibility; the need to promote public trust and confidence in the administration of justice; the ways in which the legislature and the judiciary contribute to the development of the criminal law; and the different individual and community rights and interests that are implicated by the criminal sentencing process. There are other themes and ideas, too, of course! The foregoing list is intended to jump-start your thinking, not to confine it.

In the Court of Appeal of Alberta

Citation: R. v. Arcand, 2010 ABCA 363

Date: 20101202

Docket: 0803-0284-A

Registry: Edmonton

Between:

Her Majesty the Queen

Appellant

- and -

Jordan Leroy Miles Arcand

Respondent

Restriction on Publication: By Court Order, information that may identify the complainant may not be published, broadcast, or transmitted in any manner. There is also a ban on publishing the contents of the application for the publication ban or the evidence, information or submissions at the hearing of the application. See the [Criminal Code, s. 486.4](#)

The Court:

**The Honourable Chief Justice Catherine Fraser
The Honourable Mr. Justice Jean Côté
The Honourable Madam Justice Constance Hunt
The Honourable Mr. Justice Clifton O'Brien
The Honourable Mr. Justice Jack Watson**

[...]

**Reasons for Judgment Reserved of
The Honourable Chief Justice Fraser,
The Honourable Mr. Justice Côté and The Honourable Mr. Justice Watson**

I. Introduction

[1] Without public confidence in the criminal justice system, respect for the rule of law is imperilled. This Crown sentence appeal raises a number of issues directly related to maintaining public confidence in the sentencing process.

[2] The approach to sentencing in Canada is a product of this country's experience and history, and of steps taken – and not taken – through the years. It took almost 130 years from Confederation before Parliament codified, through Bill C-41, the purpose and principles of sentencing that courts must follow in imposing sanctions on offenders. As part of these sentencing reforms which came into effect in 1996 (collectively the “1996 Sentencing Reforms”), Parliament underscored how vital public confidence is to the authority of law. It accomplished this by providing in s. 718 of the *Criminal Code* that the fundamental purpose of sentencing is “to contribute, along with crime prevention initiatives, to respect for the law and the maintenance of a just, peaceful and safe society”. How is that purpose to be achieved? The answer is also found in s. 718 – “by imposing just sanctions” that have one or more of the objectives specified in the section.

[3] What is a just sanction? Again, Parliament has spoken. As part of the 1996 Sentencing Reforms, it mandated in s. 718.1 of the *Code* that a sentence *must* be proportionate to two things: the gravity of the offence and the degree of responsibility of the offender. Together, these determine the offender's overall culpability. That being so, the object of the sentencing exercise is to fashion a “just and appropriate” sentence that meets both aspects of the proportionality principle in s. 718.1. Other sentencing principles, including those in s. 718.2 (sometimes referred to as the “secondary principles”), are to be considered in determining a just and appropriate sentence which reflects the gravity of the offence committed and the moral blameworthiness of the offender. [...]

[7] Of all the sentencing duties that the *Code* confers on judges, the twin duties of imposing just sanctions and assuring fair and equal justice are the most crucial to maintaining public trust. Courts of appeal bear a special institutional responsibility to make sure this happens. [...]

IV. Historical Background

A. Unfettered Discretion in Sentencing

[19] From the time Canada was created, the task of sentencing offenders fell, as it had in the motherland of the common law, England, to the judiciary. In 1892, Canada's first *Criminal Code* was adopted. Parliament carried forward into that *Code* the sentencing discretion in favour of trial judges. Parliament's general approach historically has been to define a crime broadly, covering a range of acts of varying degrees of seriousness, and provide for an equally broad range of sentence left to the judge's discretion. Typically, it would prescribe no minimum sentence, only a maximum.

[20] For many decades, Canadian trial judges were essentially on their own in sentencing offenders. Indeed, it was not until 1921 that courts of appeal were given the power to review fitness of sentence. Prior to that, the sentencing discretion exercised by trial judges was essentially unfettered. Courts of appeal could merely consider the technical legality of the sentence imposed.

B. Parliament Moderates Discretion Through Appellate Review

[21] Unfettered discretion invites arbitrary decision-making. Parliament's decision in 1921 to allow sentence appeals on their merits represented the first in a series of steps Parliament has taken since Confederation to avoid the injustices inherent in unfettered discretion. This led in turn to greater attempts by appellate courts to define the sentencing principles that should shape the exercise of sentencing discretion. However, after half a century, the reality was that sentencing continued to be mainly a matter of first impression for the sentencing judge.

C. Initial Steps Towards Reform of Sentencing

[22] Reform, when it came, was driven largely by dissatisfaction with unjustified disparities in sentencing. Inconsistent application of principles had been seen to produce inconsistent results, thereby attracting public concern about the perceived – and actual – unfairness of the criminal justice system. First to take up the challenge were the appeal courts. With a view to assuring fair and equal justice while maintaining flexibility in sentencing, some appeal courts adopted starting points or other guideline sentencing tools.

[23] At the same time, legislators were coming to grips with the realization that to preserve public confidence, sentencing reform was essential. After commissioning a white paper entitled *The Criminal Law in Canadian Society* published in 1982, the federal government sponsored a number of sentencing reform initiatives over the next 14 years. It appointed a Royal Commission, which came to be known as the Canadian

Sentencing Commission, to consider Canada's sentencing regime. The Sentencing Commission conducted broad consultations and produced the comprehensive 1987 *Canadian Sentencing Commission Report*. Parliament then appointed an all-party committee to consider the *Sentencing Commission Report* and make recommendations. This led to the 1988 Report, *Taking Responsibility*, known as the *Daubney Report*.

[24] These sentence reform initiatives shared two core premises. First, public confidence in the fairness of sentencing in Canada had been undermined by widespread concerns about arbitrariness and disparity in sentencing. The public consultations conducted for both the Sentencing Commission and the Daubney Committee confirmed the validity of this premise. Second, the desired sentencing objectives identified in the *Sentencing Commission Report*, namely clarity, predictability, restraint, fairness, and equity, could not be attained with unconstrained sentencing discretion. [...]

[27] In response to these initiatives, Parliament decided to reform sentencing practices in a principled way. The 1996 Sentencing Reforms would be Parliament's first attempt to statutorily define – and confine – the scope of the courts' discretion in sentencing. But it would not be its last.

V. Parliament Implements Sentencing Reforms in Canada

[...]

A. Parliament Prescribes a Framework for Sentencing

[29] The 1996 Sentencing Reforms fundamentally reconfigured Part XXIII of the *Code* on sentencing. For the first time ever, in accordance with the recommendations of the *Sentencing Commission Report*, Parliament included in the *Code* an express statement of both the purpose and principles of sentencing. The legislative history and Parliamentary record confirm that one of Parliament's primary motivations was to provide a uniform approach to sentencing in Canada. Courts would henceforth be bound to serve the purpose, and apply the principles, of sentencing that Parliament prescribed. That is evident from statements made by Minister of Justice Allan Rock in introducing Bill C-41 on second reading:

The bill we are considering today is a significant one. *By its terms, for the first time Canadians would have a say through Parliament on the purpose and the principles of criminal sentencing....*

The bill reflects ...the broadly based need, *the widely felt need in Canada for uniform and effective statements in the code for what sentencing is to achieve.* [Emphasis added.]

[...]

[31] Section 718 of the *Code*, which remains in force to this day, sets out the purpose of sentencing: [...]

[32] This policy statement serves as a powerful reminder that the criminal law, by affirming and reinforcing collective values, protects not only individuals but society as a whole. The underlying premise of Canada's criminal law, that crimes are wrongs to both individuals and the community, is both venerable and ancient. Accordingly, in assessing the harm from crimes, this dimension should not be overlooked.

[33] Section 718.1, which also remains unchanged by Parliament to this day, mandates compliance by the courts with the proportionality principle in sentencing:

718.1 A sentence must be proportionate to the gravity of the offence and the degree of responsibility of the offender.

[34] Section 718.2, as enacted by Bill C-41, set out other sentencing principles that a court "shall" take into consideration in sentencing. These secondary principles include the principle of reducing or increasing sentence based on mitigating or aggravating circumstances, a concept that has been accepted for centuries. Certain matters are explicitly deemed to be aggravating [s. 718.2 (a)(i)-(v)]. Section 718.2 also recognizes the principle of parity in sentencing [s. 718.2(b)], the totality principle [s. 718.2(c), and the restraint principle [s. 718.2 (d) and (e)]. [...]

B. Parliament Leaves Sentencing to the Courts But Moderates Discretion

[35] When Parliament implemented the 1996 Sentencing Reforms, it determined, despite the recommendations of the *Sentencing Commission Report*, that the power to decide just sanctions would remain with the courts. However, it did not intend that sentencing discretion to be standardless. Rather, it moderated the discretion left with the courts in two critically important ways.

[36] First, as noted, Parliament confined the exercise of judicial discretion to statutorily-prescribed sentencing principles and objectives. Certain principles and objectives might have more or less weight depending on the circumstances of the case before the court. But in the end, the sentencing court must fashion a just and appropriate sentence that meets the proportionality principle. Second, although Parliament left sentencing to the courts, it insisted, for the first time, on a crucial process requirement – that courts provide reasons for sentence. Section 726.2 of the *Code* provides:

When imposing a sentence, a court shall state the terms of the sentence imposed, and the reasons for it, and enter those terms and reasons into the record of the proceedings.

[37] By imposing this duty, Parliament assumed that rational reasons for sentencing could be provided in each case – and insisted that they would be. [...]

3. What Does an Individualized Process Mean?

[66] The sentencing process in Canada is an individualized one, and always has been. Accordingly, to this day in Canada, sentences continue to be imposed on a case-by-case basis in the discretion of the sentencing court, subject to two limitations, that is where Parliament has prescribed a minimum sentence or a mandatory one. [...]

[67] [...] [T]hough individualized to the case, the sentencing process is not exclusively about the offender. The process is also about the harm to the victim and the community from the crime. Harm properly occupies a prominent place in the sentencing process, representing as it effectively does one of the central elements in the proportionality principle, the gravity of the offence. [...]

[68] [...] [I]n the absence of any appellate guidance, the range of possible sentence for most crimes is theoretically broad and thus the margin for potential unwarranted disparity great.

[70] [...] [T]o maintain confidence in the criminal justice system, an offender's sentence should be based on the facts of the case – and what he or she did – and not on the philosophy or preferences of the sentencing judge. Parliament has accepted that some differences in sentences will arise from the human factor. But wide disparities in sentencing untethered to valid distinctions between cases cause serious problems for the criminal justice system – and understandably so. Such disparities undermine the public's trust that the criminal justice system, and the exercise of state power that it involves, will treat people fairly and equally. They also breed disrespect for the law. [...]

[The court goes on to discuss the more specific practices by which judges should minimize sentencing disparities. That part of its analysis has been corrected or refined, to some extent, by the Supreme Court of Canada in the subsequent case of *R v Parranto*, 2021 SCC 46. These aspects of the decision are well beyond the scope of our Criminal Law course, so you need not worry about them.]